

Defendant demanded monetary sanctions of \$350.00 but did not give any basis for that figure. Section 2023.040 of the CCP provides:

A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.

Defendant is self-represented. It does not appear any expenses were incurred in the preparation of this motion. He did not submit a declaration setting forth facts supporting his demand for \$350.00 in monetary sanctions.

The motion to compel is denied. The request to have the Requests for Admission deemed admitted is denied because the Request for Admissions was improperly combined with other discovery methods. Plaintiffs served their responses to the interrogatories months ago--thus the court will not compel them to respond at this time. There is no contention that their responses were insufficient. The request for monetary sanctions is denied because there is no factual basis supporting the amount sought.

**7. 9:00 AM CASE NUMBER: C25-00782**  
**CASE NAME: AMIN SOBHANI VS. MERCEDEZ-BENZ USA, LLC,**  
**\*MOTION/PETITION TO COMPEL ARBITRATION**  
**FILED BY: MERCEDEZ-BENZ USA, LLC,**  
**\*TENTATIVE RULING\***

Hearing is continued on the Court's motion to May 1, 2026, 9:00 a.m., Dept. 32.

**8. 9:00 AM CASE NUMBER: C25-01567**  
**CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY:**  
**\*TENTATIVE RULING\***

Hearing is continued on the Court's motion to January 30, 2026, 9:00 a.m., Dept. 32

**9. 9:00 AM CASE NUMBER: C25-01663**  
**CASE NAME: AMBER CLEVELAND VS. DANTE LUCCA**  
**\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

The unopposed motion of Jason G. Eisenberg to be relieved as counsel for Plaintiff Amber Cleveland is granted.